

IN THE COURT OF COMMON PLEAS

DIVISION

COUNTY, OHIO

Name

Case No.

Street Address

Judge

City, State and Zip Code

Magistrate

Plaintiff

vs.

Name

Street Address

City, State and Zip Code

Defendant

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: This form is used to request a divorce if you and your spouse have (a) minor child(ren), adult child(ren) attending high school, or child(ren) with disabilities, and/or a party is pregnant. Check to determine if you meet the residency requirement to file in this county. A Request for Service (Uniform Domestic Relations Form 31/Juvenile Form 10) and a Parenting Proceeding Affidavit (Uniform Domestic Relations Form - Affidavit 3) must be filed with this form. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

COMPLAINT FOR DIVORCE WITH CHILDREN

Now comes Plaintiff and states as follows:

1. Plaintiff has been a resident of the State of Ohio for at least six (6) months immediately before filing this Complaint.
2. ☐ Plaintiff has been a resident of _____ County for at least ninety (90) days immediately before filing this Complaint; OR
☐ The Defendant resides in _____ County where this Complaint is filed.

3. Plaintiff and Defendant were married on _____ (date of marriage)
in _____ (city or county, and state).

4. ☐ Neither party is pregnant OR ☐ a party is pregnant.

5. *Check all that apply:* (If more space is needed, add additional pages)

☐ The following child(ren) was/were born of the parties' relationship prior to the marriage:

Name of Child

Date of Birth

_____	_____
_____	_____
_____	_____
_____	_____

☐ The following child(ren) was/were born from or adopted during this marriage:

Name of Child

Date of Birth

_____	_____
_____	_____
_____	_____
_____	_____

☐ The following child(ren) was/were born from or adopted during this marriage or relationship and is/are mentally or physically disabled and will be incapable of supporting or maintaining themselves:

Name of Child

Date of Birth

_____	_____
_____	_____
_____	_____

☐ The following child(ren) is/are subject to an existing order of parenting or support of another Court:

Name of Child

Date of Birth

_____	_____
_____	_____

☐ One party is not the parent of the following child(ren) who was/were born during the marriage:

Name of Child

Date of Birth

_____	_____
_____	_____

6. Military Service:

☐ Neither Plaintiff nor Defendant is an active-duty servicemember of the United States military.

☐ Plaintiff and/or ☐ Defendant is an active-duty servicemember of the United States military.

7. Plaintiff is entitled to a divorce from Defendant based upon the following grounds: *(check all that apply)*
- ☐ Plaintiff and Defendant are incompatible.
 - ☐ Plaintiff and Defendant have lived separate and apart without cohabitation and without interruption for one (1) year.
 - ☐ Plaintiff or Defendant had a Husband or Wife living at the time of the marriage.
 - ☐ Defendant has been willfully absent for one (1) year.
 - ☐ Defendant is guilty of adultery.
 - ☐ Defendant is guilty of extreme cruelty.
 - ☐ Defendant is guilty of fraudulent contract.
 - ☐ Defendant is guilty of gross neglect of duty.
 - ☐ Defendant is guilty of habitual drunkenness.
 - ☐ Defendant is imprisoned in a state or federal correctional institution at the time of filing this Complaint.
 - ☐ Defendant procured a divorce outside this state by virtue of which Defendant has been released from the obligations of the marriage, while those obligations remain binding on Plaintiff.
8. Plaintiff and Defendant are owners of real estate and/or personal property.

Plaintiff requests that a divorce be granted from Defendant. Plaintiff further requests that the Court determine an equitable division of property and debts and order the following: *(check all that apply)*

- ☐ Plaintiff be designated the residential parent and legal custodian of the following minor child(ren):
_____;
 - ☐ Defendant be designated the residential parent and legal custodian of the following minor child(ren):
_____;
 - ☐ the non-residential parent be granted specific parenting time;
 - ☐ Plaintiff and Defendant be granted shared parenting of the following minor child(ren):

- pursuant to a Shared Parenting Plan (Uniform Domestic Relations Form 20), which Plaintiff will prepare and file with the Court;
- ☐ Defendant pay child support, cash medical support, and health care expenses;
 - ☐ Defendant pay spousal support;
 - ☐ Plaintiff be restored to the former name of _____;
 - ☐ Defendant pay Plaintiff's attorney fees;
 - ☐ Defendant pay the Court costs of the proceeding;
- and any further relief deemed proper.

Attorney or Self Represented Party Signature

Printed Name

Address

City, State, Zip

Phone Number

Fax Number

E-mail

Supreme Court Reg No. (if any)